

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

CASE OF LUTSEVICH AND OTHERS v. RUSSIA

(Applications nos. 25187/15 and 35 others –
see appended list)

JUDGMENT

STRASBOURG

14 March 2024

This judgment is final but it may be subject to editorial revision.



In the case of Lutsevich and Others v. Russia,

The European Court of Human Rights (Second Section), sitting as a Committee composed of:

Lorraine Schembri Orland*, President*,
Frédéric Krenc,
Davor Derenčinović*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 15 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its well-established case-law (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a prosecuting party in the proceedings under

the Code of Administrative Offences (the CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; *Korneyeva*, cited above, §§ 62-65 as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence; and *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016, related to disproportionate measures taken by the authorities against participants of solo manifestations).

V. REMAINING COMPLAINTS

14. Some applicants also raised additional complaints under Articles 5 and 6 of the Convention.

15. In view of the findings in paragraphs 10-13 above, the Court considers that there is no need to deal separately with the remainder of the applicants' complaints under Article 6 of the Convention concerning alleged restrictions on the right to examine witnesses.

16. The Court has further examined the applicants' additional complaints (applications nos. 57562/21, 57565/21, 58164/21 and 13540/22) under Article 5 of the Convention and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, these complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

17. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to the facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible and the remaining complaints under

Article 5 of the Convention (applications nos. 57562/21, 57565/21, 58164/21 and 13540/22) inadmissible, and *finds* that there is no need to examine separately the applicants' complaints under Article 6 of the Convention concerning alleged restrictions on the right to examine witnesses;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see the appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Lorraine Schembri Orland President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
1.	25187/15 12/05/2015	**Sergey Vladimirovich LUTSEVICH** 1976		Demonstration in support of the media channel "Dozhd" Moscow 08/02/2014	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/11/2014	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
2.	19779/20 23/03/2020	**Zinaida Aleksandrovna GILYAZOVA** 1989	Antokhin Yevgeniy Vyacheslavovich Moscow	Anti-war manifestation Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 07/09/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 5 (1) - unlawful detention - arrest and detention on 10/08/2019 from 5.40 p.m. to 1 a.m. on 11/08/2019- Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO); arrest and detention on 06/03/2022 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (both complaints raised on appeal)	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
3.	13723/21 10/02/2021	**Ruslan Mansurovich ZINATULLIN** 1978		Participation in the Municipal Russian Forum organised by Open Russia public association Moscow 13/03/2021	article 20.33 of CAO	fine of RUB 5,000	Vakhitovskiy District Court of Kazan 01/07/2021	Art. 5 (1) - unlawful detention - The applicant was arrest on 03/06/2020 in connection with the solo picket carried out on 15/05/2020 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (the complaint raised on appeal in the administrative proceedings), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - in relation to administrative proceedings under Article 20.2 of CAO which ended on 16/09/2020, Art. 11 (1) - restrictions on location, time or manner of conduct of public events - the authorities' refusal to approve a manifestation in support of victims of political repressions on 02/11/2019 in Kazan. On 18/10/2019 the applicant notified the authorities of his wish to hold that event, however the authorities proposed to change the location because another event had already been planned there. The final decision was taken by the Supreme Court of the Russian Federation on 07/04/2021, complaint lodged on 06/10/2021. Art. 10 (1) - disproportionate measures against solo demonstrators - Kazan, Military Commissariat, 15/05/2020, Solo Picket against mandatory military service (conscription); article 20.2 § 1 of CAO; penalty: 30 hours' community service; final decision taken by the Supreme Court of the Tatarstan Republic on 16/09/2020.	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
4.	16050/21 05/03/2021	**Yevgeniy Vadimovich DILMAN** 2001	Memorial Human Rights Centre Moscow	Manifestation in support of S. Furgal Komsomolsk-on-Amur 29/07/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Khabarovsk Regional Court 07/12/2020		3,500
5.	21993/21 07/04/2021	**Yevgeniy Konstantinovich KOSTOMAROV** 1989	Memorial Human Rights Centre Moscow	Manifestation in support of A. Navalnyy ("Otpuskai") Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention of 12 days	Moscow City Court 09/02/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 5 (1) - unlawful detention - arrest and detention on 02-03/02/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 03/02/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
6.	29794/21 08/05/2021	**Viola Nikolayevna TITOVA** 1983		Manifestation in support of S. Furgal Krasnoyarsk 15/08/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 12/11/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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7.	30013/21 08/05/2021	**Vladimir Andreyevich DUBOVSKIY** 1991	Vasin Vladimir Valeryevich Krasnoyarsk	Manifestation in support of S. Furgal Krasnoyarsk 01/08/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Krasnoyarsk Regional Court 12/11/2020	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
8.	30082/21 11/05/2021	**Mikhail Mikhaylovich MOROZOV** 1984	Aksenova Darya Dmitriyevna Kolomna	Manifestation in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative detention of 14 days	Moscow City Court 12/02/2021	Art. 5 (1) - unlawful detention - arrest and overnight detention from 3 p.m. on 31/01/2021 to 01/02/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; Detention as an administrative suspect: beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
9.	31703/21 07/06/2021	**Aleksandr Aleksandrovich SIBIKIN** 1991	Memorial Human Rights Centre Moscow	Manifestation in support of A. Navalnyy Moscow, Matrosskaya Tishina 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 26/03/2021	Art. 5 (1) - unlawful detention - arrest and detention on 31/01/2021 from 4.40 p.m. to 11.40 p.m. - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable on the spot to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO (raised on appeal), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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10.	31824/21 16/06/2021	**Andrey Dmitriyevich GARIFULLIN** 1987	Bayeva Aleksandra Nikolayevna Moscow	Manifestation in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Moscow City Court 12/04/2021	Art. 5 (1) - unlawful detention - Arrest and detention from 11.45 a.m. to 10.45 p.m. on 31/01/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; the applicant remained in detention after the offence record had been compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceeding	4,000
11.	31827/21 16/06/2021	**Anton Dmitriyevich GONCHARUK** 1996	Bayeva Aleksandra Nikolayevna Moscow	Manifestation in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative arrest of 8 days	St Petersburg City Court 09/03/2021	Art. 5 (1) - unlawful detention - Arrest and detention from 1.30 p.m. on 31/01/2021 to 6 p.m. on 01/02/2021 - applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; Detention as an administrative suspect: the applicant remained in detention after the offence record had been compiled, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant on 01/02/2021 was executed immediately, on the account of lack of suspensive effect of an appeal under the CAO	5,000

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12.	31854/21 16/06/2021	**Yegor Timofeyevich NECHAYEV** 2001	Bayeva Aleksandra Nikolayevna Moscow	Manifestation in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	administrative arrest of 15 days	Moscow City Court 08/02/2021	Art. 5 (1) - unlawful detention - Arrest and detention on 31/01/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; the applicant remained in detention after the offence record had been compiled; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 01//02/2021 was executed immediately, on the account of lack of suspensive effect of an appeal under the CAO	5,000
13.	36365/21 30/06/2021	**Arseniy Mikhaylovich CHEKANOV** 2002	Memorial Human Rights Centre Moscow	Manifestation in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/04/2021	Art. 5 (1) - unlawful detention - Arrest and detention from 4.30 p.m. on 31/01/2021 to 4.30 a.m. on 01/02/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable on the spot to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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14.	40552/21 30/07/2021	**Olga Valentinovna LEVINA** 1956	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of A. Navalnyy Tambov 31/01/2021	article 20.2 § 3 of CAO	administrative detention of 15 days	Tambov Regional Court 05/02/2021	Art. 5 (1) - unlawful detention - arrest and detention on 31/01/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable on the spot , to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
15.	45532/21 12/08/2021	**Andrey Sergeyevich CHVANOV** 1976	Shagiyeva Regina Ilgizovna Leninigorsk	Manifestation in support of A. Navalnyy Naberezhnye Chelny 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Tatarstan Republic 10/03/2021	Art. 5 (1) - unlawful detention - Arrest and detention on 23/01/2021 and 30/01/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity, raised on appeal Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant in administrative proceedings under Article 20.2 § 2 of CAO was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO, Art. 10 (1) - conviction for making calls to participate in public events - the applicant posted information on Internet concerning the rally to support A. Navalnyy on 31/01/2021, Article 20.2 § 2 of CAO, detention for 9 days, final decision 10/03/2021 Supreme Court of the Tatarstan Republic	5,000

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16.	51383/21 30/09/2021	**Olga Anatolyevna SHKOLINA** 1977	Memorial Human Rights Centre Moscow	Manifestation in support of A. Navalnyy Arkhangelsk 16/01/2021	article 20.2.2 § 1 of CAO	fine of RUB 11,000	Arkhangelsk Regional Court 02/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
17.	53264/21 01/10/2021	**Olga Sergeyevna YELSAKOVA** 1978	Vladyka Oksana Anatolyevna Arkhangelsk	Manifestation in support of A. Navalny Arkhangelsk 16/01/2021	article 20.2 § 2 of CAO	45 hours of community service	Arkhangelsk Regional Court 01/04/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
18.	57562/21 07/11/2021	**Sharafdzhon Mukimdzhonovich SOBIROV** 1984	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation in support of I. Amon Moscow 02/04/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Moscow City Court 13/07/2021	Art. 5 (1) - unlawful detention - Arrest and detention on 02/04/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (raised in the administrative proceedings); Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	57565/21 07/11/2021	**Murodali Makhmadnaimovich SALIMOV** 1999	Zboroshenko Nikolay Sergeyevich Mytishchi	Manifestation in support of I. Amon Moscow 02/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 13/07/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 5 (1) - unlawful detention - Arrest and detention on 02/04/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (raised on appeal in the administrative proceedings)	4,000

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20.	58164/21 05/11/2021	**Mariya Alekseyevna SMIRNOVA** 1988	Zboroshenko Nikolay Sergeyevich Mytishchi	Picket in support of A. Navalnyy Moscow 19/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 25/08/2021	Art. 5 (1) - unlawful detention – Arrest and detention 19/01/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity (raised on appeal in the administrative proceedings) Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - administrative fine of RUB 10,000, 25/08/2021, Moscow City Court	4,000
21.	1435/22 21/12/2021	**Aleksandr Andreyevich YARKIN** 2002	Gilmanov Mansur Idrisovich Podolsk	March of Russian nationalists Moscow 04/11/2020	article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 27/09/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 5 (1) - unlawful detention – Arrest and detention on 04/11/2020 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable on the spot to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity	4,000
22.	7143/22 31/01/2022	**Svyatoslav Andreyevich LEKONTSEV** 2002	Zhdanov Ivan Yuryevich Vilnius	Manifestation in support of A. Navalnyy Perm 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 25/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1]
23.	8108/22 18/01/2022	**Anastasiya Olegovna GOMENYUK** 1986	Chashchilova Mariya Valeryevna Moscow	Manifestation in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 27/10/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - Arrest and detention from 11.50 a.m. to midnight on 31/01/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO); both complaints were raised on appeal	4,000
24.	8587/22 14/01/2022	**Sergey Aleksandrovich SMIRNOV** 2000	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Manifestation in support of A. Navalnyy Nizhny Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 5,000	Nizhny Novgorod Regional Court 15/07/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 5 (1) - unlawful detention – Arrest and detention on from 12.30 p.m. to 6.30 p.m. on 31/01/2021 Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO); both complaints were raised on appeal.	4,000
25.	8599/22 14/01/2022	**Vyacheslav Vyacheslavovich ISAKOV** 1974	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Manifestation in support of A. Navalnyy Nizhny Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Nizhny Novgorod Regional Court 15/07/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention – Arrest and detention from 12.30 p.m. to 8 p.m. on 31/01/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; Detention as an administrative suspect:	4,000

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								beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO); both complaints were raised on appeal	
26.	12376/22 24/02/2022	**Manzar Shokhimboyevich YUSUPOV** 1985	Prosvirkina Kseniya Dmitriyevna Moscow	Demonstration in support of I. Amon Moscow 02/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 27/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
27.	12869/22 17/02/2022	**Andrey Valeryevich KRAVTSOV** 1984	Sivoldayev Ilya Vladimirovich Voronezh	Manifestation in support of A. Navalnyy Voronezh 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 17/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
28.	13120/22 17/02/2022	**Igor Aleksandrovich GREKOV** 1994	Memorial Human Rights Centre Moscow	Manifestation in support of A. Navalnyy Voronezh 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 23/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings Art. 5 (1) - unlawful detention - Arrest and detention on 21/04/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; raised on appeal	4,000

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29.	13124/22 17/02/2022	**Aleksey Sergeyevich FILIPPOV** 1989	Memorial Human Rights Centre Moscow	Manifestation in support of A. Navalnyy Ivanovo 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Ivanovo Regional Court 23/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceeding Art. 5 (1) - unlawful detention – Arrest and detention on 21/04/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; raised on appeal	4,000
30.	13126/22 17/02/2022	**Lev Robertovich PUSHNOV** 1963	Memorial Human Rights Centre Moscow	Manifestation in support of A. Navalnyy Moscow 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 23/09/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings Art. 5 (1) - unlawful detention – Arrest and detention on 31/01/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; raised on appeal	4,000
31.	13540/22 31/01/2022	**Andrey Denisovich BOKAREV** 1997	Bannikov Ruslan Yuryevich Voronezh	Manifestation in support of A. Navalnyy Voronezh 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Voronezh Regional Court 28/09/2021	Art. 5 (1) - unlawful detention - arrest and detention on 21/04/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; raised on appeal Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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32.	19137/22 26/03/2022	**Tazret Sergeyevich TEDEYEV** 1991		Manifestation in support of A. Navalnyy Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 27/09/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 5 (1) - unlawful detention - arrest and detention on 02/02/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable on the spot to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO e.g. to establish the suspect's identity; raised on appeal	4,000
33.	28513/22 13/05/2022	**Nadezhda Leonidovna ZAGORDAN** 1984	Tregubova Yuliya Mikhaylovna Balashikha	Manifestation in support of A. Navalnyy Moscow 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 17/11/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
34.	29348/22 14/05/2022	**Stepan Vladimirovich SAMOYLENKO** 1993	Baranova Natalya Andreyevna Moscow	Manifestation in support of A. Navalnyy Moscow, Manezh Square and Tverskaya Street 21/04/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 15/11/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Art. 5 (1) - unlawful detention - arrest and detention on 22/05/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; raised on appeal	4,000

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35.	30755/22 06/03/2022	**Aleksandr Nikolayevich KOLOSOV** 1981	Memorial Human Rights Centre Moscow	"Political performance" in support of "The Other Russia" political party of E. Limonov St Petersburg 29/07/2021	article 20.2 § 2 of CAO	administrative detention of 3 days	St Petersburg City Court 07/09/2021	Art. 5 (1) - unlawful detention – Arrest and detention on 29/07/2021 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; raised on appeal; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - The sentence of administrative detention imposed on the applicant on 30/07/2021 was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	5,000
36.	5090/23 13/01/2023	**Aleksandr Yevgenyevich SHAPOSHNIKOV** 2003		Demonstration in memory of Boris Nemtsov Moscow 27/02/2022	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 13/09/2022	Art. 5 (1) - unlawful detention – Arrest and detention from 5.45 p.m. on 27/02/2022 to 2.55 a.m. on 28/02/2022 - Applicant taken to the police station as an administrative suspect: no evidence/assessment that it was impracticable, on the spot, to compile the offence record (Art. 27.2 § 1 CAO) and achieve the objectives set out in Art. 27.1 CAO, e.g. to establish the suspect's identity; Detention as an administrative suspect: beyond the three-hour statutory period (Art. 27.5(1)-(4) CAO); raised on appeal; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.